



NEW MEXICO ASSOCIATION OF REALTORS® - 2025
SELLER'S DISCLOSURE OF HOMEOWNERS' ASSOCIATION
DOCUMENTS



This Disclosure is part of the Purchase Agreement – Residential dated _____, between _____ (“Buyer”) and _____ (“Seller”) and relating to the following Property:

Address (Street, City, State, Zip Code) _____

Legal Description

or see metes and bounds or other legal description attached as Exhibit _____, _____ County(ies), New Mexico. An incomplete or inaccurate legal description of the Property shall not render this Agreement invalid; the legal description shall be completed or corrected to meet the requirements of the Title Company issuing the title policy.

The Property is located in a Homeowners' Association (HOA). An HOA is an organization of homeowners of a particular subdivision or planned unit development that has certain rights and obligations as set forth in the HOA's community documents. The New Mexico HOA Act governs HOAs that are not otherwise governed by the New Mexico Condominium Act. For more information on HOAs, refer to NMAR Form 4600, HOA Information Sheet.

1. **DISCLOSURES OF HOA DOCUMENTS.** The New Mexico HOA Act requires Seller or Seller's agent/broker to provide the following HOA Documents to Buyer. Unless otherwise noted herein, the term “Electronic Delivery” as used herein refers to delivery of the documents by electronic mail (e-Mail). If Seller indicates any of the below HOA Documents are “unavailable”, the Seller should complete and the Seller and Buyer should sign NMAR Form 4675 – Seller's Notification of Unavailability of Homeowners' Association Documents.

	<u>Attached Hereto</u>	<u>Date of Electronic Delivery</u>	<u>Unavailable</u>
A. Declaration of the HOA (other than the plats and plans)	☐ Exhibit _____	_____	_____
B. Bylaws of the HOA	☐ Exhibit _____	_____	_____
C. Rules of the HOA	☐ Exhibit _____	_____	_____
D. Covenants, Conditions and Restrictions (applicable to the Property)	☐ Exhibit _____	_____	_____
E. Disclosure Certificate from the HOA	☐ Exhibit _____	_____	_____

2. **BUYER'S RIGHT TO TERMINATE THE PURCHASE AGREEMENT.**

- A. **HOA DISCLOSURE CERTIFICATE:** Per the New Mexico HOA Act, Buyer or Buyer's agent/broker has the right to terminate the Purchase Agreement within seven (7) days after receiving the **HOA Disclosure Certificate**. If after receiving the HOA Disclosure Certificate, a Buyer elects to terminate the Purchase Agreement, such termination shall be without penalty and all earnest money or other fees paid by the Buyer to the Seller before termination will be refunded to Buyer within 15 days. For Buyer to waive any portion of the seven (7) day review period, please see NMAR Form 4750 - Buyer's Waiver Of Any Portion Of HOA 7-Day Review Period. IF THERE IS CONFLICT BETWEEN THIS PROVISION AND ANY PROVISION OF THE PURCHASE AGREEMENT, THIS PROVISION SHALL CONTROL.

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B. ALL OTHER HOA DOCUMENTS: Buyer shall have the timeframe provided for in the Purchase Agreement for review of and objection to all HOA Documents listed in Paragraph 1, except the HOA Disclosure Certificate, which is governed by Paragraph 2(A) above. In the event Buyer terminates the Purchase Agreement based on Buyer's review of any HOA Document listed in Paragraph 1, except the HOA Disclosure Certificate, distribution of the earnest money shall be governed by the Purchase Agreement.

BY HIS INITIALS HERETO, BUYER ACKNOWLEDGES THAT BUYER HAS RECEIVED THE FOLLOWING DOCUMENTS EITHER AS EXHIBITS TO THIS ADDENDUM OR IN ELECTRONIC FORM:

- _____ A Disclosure Certificate from the HOA
- _____ The Bylaws of the HOA
- _____ The Covenants, Conditions and Restrictions (CC & Rs) applicable to the Property
- _____ The Declaration of the HOA
- _____ The Rules of the HOA

BUYER(S)

Buyer Signature	Printed Name	Date	Time
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Buyer Signature	Printed Name	Date	Time
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If additional signature lines are needed, please use NMAR Form 1150 – Signature Addendum

SELLER(S)

Seller Signature	Printed Name	Date	Time
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Seller Signature	Printed Name	Date	Time
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If additional signature lines are needed, please use NMAR Form 1150 – Signature Addendum